

Court No. - 17

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Shree Prakash Singh,J.

Sri Sanjay Singh, learned counsel is present for the respondent no.1.

From the perusal of the order sheet, it is evident that the learned counsel for the respondent no.2 did not appear on 13.8.2019, 3.9.2019 and other previous dates.

As a last opportunity to the learned counsel for the respondent no. 2, the matter is posted on 20th April 2022.

It is made clear that if the learned counsel for the respondent no.2 does not appear on that day, the Court will proceed to hear the matter in absence of him.

Interim order, if any, is extended till the next date.

Order Date :- 8.4.2022

Ram Murti

Court No. - 17

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Shree Prakash Singh,J.

As prayed by learned counsel for the petitioner, list/put up this matter in the week commencing 9th of May 2022.

Interim order, if any, is extended till the next date of listing.

Order Date :- 20.4.2022

Ram Murti

Court No. - 20

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Manish Kumar,J.

As prayed by learned counsel for the petitioner, list this case in the next cause list.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 19.7.2022

Ashish

Court No. - 22

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Manish Kumar,J.

Case has been called out in the revised list.

Learned counsel for the petitioner is present. However, no one is present for the respondent No.1.

List this case on **13.9.2022**.

Interim order, if any, shall continue to operate till the next date of listing.

Order Date :- 30.8.2022

Sachin

Court No. - 22

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through
Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Manish Kumar,J.

Case has been called in the revised list. Learned counsel for the petitioner is present. Learned counsels for the respondents shown in the list are neither present nor any request has been made on their behalf.

List this case on 1.11.2022.

Interim order, if any, to continue till the next date of listing.

Order Date :- 10.10.2022

S. Kumar

Court No. - 20

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Manish Kumar,J.

Case has been called in the revised list. Learned counsel for the petitioner is present, but neither anyone has put in appearance on behalf of respondent nor any adjournment slip has been sent.

List this case on 3.12.2022.

Interim order, if any, to continue till the next date of listing.

Learned counsel for the petitioner is requested to serve a copy of this order to the learned counsel for the respondent in writing.

Order Date :- 22.11.2022
S. Kumar

Court No. - 20

Case :- WRIT - C No. - 1002386 of 2008

Petitioner :- Dakshinanchal Vidut Vitran Nigam Ltd. Through Its Executive

Respondent :- Electricity Ombudsman U.P.Lko.And Ors.

Counsel for Petitioner :- Amarjeet Singh Rakhra

Counsel for Respondent :- I.B.Singh,Rajesh Verma

Hon'ble Manish Kumar,J.

1. Case has been called in the revised list.

2. Shri Amarjeet Singh Rakhra, learned counsel for the petitioner is present but no one has put in appearance on behalf of the respondent nos. 1 and 2 nor any request has been made for adjournment of the case.

3. Present petition has been preferred for quashing of the order dated 25.01.2008 passed by the respondent no. 1 i.e. Electricity Ombudsman, U.P. in Appeal No. 52 of 2007 under Section 42 (6) of the Electricity Act, 2003 (hereinafter referred to as, the Act, 2003).

4. Learned counsel for the petitioner has submitted that the respondent no. 2 had a valid 10 K.W. Commercial Electricity Connection for running Floor Mill. The electricity could not be supplied to the respondent no. 2 for the period w.e.f. 30.10.2005 to 03.01.2006 owing to some fault in transformer. It was also not supplied for the period w.e.f. 21.05.2006 to 29.10.2006 due to theft of electricity poles and wires.

5. A electricity bill was raised by the Petitioner, for the said period, against the respondent no. 2, thus, feeling aggrieved, the respondent no. 2 had preferred a case under Section 42 (5) of the Act, 2003 before the Consumer Grievance Redressal Forum (hereinafter referred to as, the Forum).

6. The Forum vide its order dated 17.03.2007 had waived the electricity charges while directing the respondent no. 2 to pay the Minimum Consumption Guarantee (M.C.G). Against the said order passed by the Forum dated 17.03.2007, the respondent no. 2 preferred an appeal under Section 42 (6) of the Act, 2003 before the respondent no.1, which was allowed vide impugned order dated 25.01.2008, which is subject matter of the present petition.

7. Learned counsel for the petitioner has submitted that order passed by the respondent no. 1 waiving the M.C.G. is against stipulation made in para no. 11 of the Commercial and Revenue Manual (for brevity, Manual) where waiver of M.C.G. is not permissible except in certain circumstances which is provided under Clause 9.1 of the Electricity Supply Code, 2005 (hereinafter referred to as, the Code, 2005).

8. It is further submitted that as per para 11 of the Manual, the M.C.G. cannot be waived if the electricity dues are pending against the consumer. It is further submitted that the respondent no. 1 had given finding that the electricity dues were pending against the respondent no. 2, even though considering the relevant provisions in its order even then, the M.C.G. was waived, thus, order is contradictory.

9. After hearing learned counsel for the petitioner, going through the record, relevant provisions and the counter affidavit filed by the respondent no. 2, the position which emerges out in the present case is that in para nos. 12 and 13 of the writ petition, it has specifically been pleaded that as per para 11 of the Manual, M.C.G. charges for the disconnection period of the electricity will not be charged from the consumer, provided if there is no pending dues against the petitioner. The said averments made in para nos. 12 and 13 of the writ petition have been replied in para nos. 5 and 6 of the counter affidavit where the respondent no. 2 has not disputed that electricity dues were pending against him.

10. The respondent no. 1 has also given a specific finding that there were dues of electricity bills against the consumer. Once, it has been found by the respondent no. 1 that the electricity dues were pending against the respondent no. 2 thus, there was no occasion to waive off the M.C.G. thus, waiver off the M.C.G. is against the para no. 11 of the Manual.

11. In view of the discussion made hereinabove, the present petition is **allowed**. The order under challenge dated 25.01.2008 passed by the respondent no. 1 i.e. Electricity Ombudsman, U.P. in Appeal No. 52 of 2007 under Section 42 (6) of the Act, 2003, is hereby quashed.

Order Date :- 12.12.2022/Ashish